

CONTRACT FOR SERVICES
between
THE LARAMIE COUNTY COMMUNITY JUVENILE SERVICES JOINT POWERS
BOARD
And
THE CITY OF CHEYENNE, OFFICE OF YOUTH ALTERNATIVES

This Contract for Services (hereinafter "Agreement") is made and entered into by and between the Laramie County Community Juvenile Services Joint Powers Board, 310 W. 19th Street, Cheyenne, Wyoming 82001 ("BOARD") and the City of Cheyenne, Youth Alternatives, 1328 Talbot Court, Cheyenne, Wyoming 82001 ("CONTRACTOR"). The parties agree as follows:

I. PURPOSE

The purpose of this Agreement is to procure from CONTRACTOR juvenile justice and case management services for which the CONTRACTOR will be paid by the BOARD. These are services that could otherwise be rendered directly by the BOARD for the benefit of the public. This Agreement does not constitute a grant. It is a contract to purchase services. These services are described more detail in two attachments to this Agreement, namely (1.) CONTRACTOR'S *Request for Funding, Fiscal Year 2024* document which is attached to this Agreement as Attachment A; and (2.) CONTRACTOR'S *Substance Abuse Intervention Request for Funding* document, which is attached to this Agreement as Attachment B. Both of these Attachments are incorporated into this Agreement.

II. TERM

This Agreement shall commence on July 1, 2024 and shall remain in effect through June 30, 2026. This Agreement may be renewed subject to the mutual agreement of the parties, in writing, as to term, scope and cost of services, and availability of funding. This Agreement may be terminated in accordance with the terms and conditions set forth herein.

III. PAYMENT

BOARD has approved possible payment of up to \$152,252.00 (One Hundred and Fifty-Two Thousand, Two Hundred and Fifty-Two Dollars and No Cents) for services to be provided by CONTRACTOR as Community Service Coordinator/ Case Manager (as per Attachment A) for the two year period between July 1, 2024 and June 30, 2026. The BOARD has also approved possible payment of up to \$24,000.00 (Twenty-Four Thousand Dollars) for services and costs to be provided by CONTRACTOR for Substance Abuse Prevention/Evaluation (as per Attachment B). The total amount of these two items added together is: \$176,252.00 (One Hundred Seventy Six, Two Hundred and Fifty Two Dollars and No Cents) and total payment under this Agreement shall not exceed that amount.

Payment will be made by BOARD to CONTRACTOR in the following manner:

- A. Community Service Coordinator/ Case Manager Services. Payment for these services will be made in a series of twenty-four monthly payments, with each such monthly payment being for one twenty fourth (1/24) of the \$152,252.00 (One Hundred and Fifty-Two Thousand, Two Hundred and Fifty Two Dollars and No Cents) amount approved by the Board for these services (as described herein). CONTRACTOR shall submit a monthly invoice reflecting the services provided and request for payment. These payments may be suspended or reduced for any period(s) of time in which the services are not rendered. Each such monthly payment will be made only after: (1.) receipt of CONTRACTOR's monthly invoice to BOARD, (2.) receipt of funds from the Wyoming Department of Family Services, and (3.) a vote of approval by BOARD to pay the submitted invoice. Payment shall be in accordance with Wyo. Stat. §16-6-602 (as amended).
- B. Substance Abuse Prevention/Evaluation Services. Payment for these services will be made monthly, with the amount of payment to be made each month being dependent on the number of evaluations performed and related costs incurred by CONTRACTOR in that month. CONTRACTOR shall submit a monthly invoice for these services and costs to BOARD. Said invoice will include a description of the number of evaluations performed and related costs incurred. Payment for these services and related costs may be suspended or reduced for any period(s) of time in which the services are not rendered. Each monthly payment will be made only after (1.) receipt of CONTRACTOR's monthly invoice to BOARD, (2.) receipt of funds from the Wyoming Department of Family Services, and (3.) a vote of approval by BOARD to pay the submitted invoice. Payment shall be in accordance with Wyo. Stat. §16-6-602 (as amended). Regardless of the number of evaluations performed or costs incurred, the maximum amount of payment to be made for these services and costs is \$24,000.00 (Twenty-Four Thousand Dollars and No Cents.)

IV. RESPONSIBILITIES OF CONTRACTOR

A. CONTRACTOR shall provide juvenile justice prevention, diversion, and case management services. The CONTRACTOR may use existing or specifically hired staff to provide these services as long as licensure and other professional standards are met and services are provided as set forth in Attachment A, CONTRACTOR's *Request for Funding, Fiscal Year 2024*. CONTRACTOR shall also provide services for substance evaluation and testing as set forth in Attachment B, CONTRACTOR'S *Substance Abuse Intervention Request for Funding*.

B. CONTRACTOR shall provide with their monthly invoices a report of the number of juveniles served during the month and cumulatively by the CONTRACTOR's services.

C. CONTRACTOR shall provide a report within seven days of the conclusion of each month which will include a narrative description of significant issues and opportunities, the

number of youth served by these services and the total number of contact hours provided by each program during the previous month. CONTRACTOR shall provide all other reports as may be required by Attachment A or Attachment B or as may be subsequently required by BOARD regarding the nature of the services being provided or other aspects of the CONTRACTOR'S performance under this Agreement.

D. CONTRACTOR shall collect and submit juvenile justice data in accordance with Wyo. Stat. §7-19-503.

E. CONTRACTOR agrees to retain all required records for three (3) years after BOARD makes final payment and all other matters relating to this Agreement are concluded. CONTRACTOR agrees to permit access by the BOARD or any of its duly authorized representatives to any books, documents, papers and records of the CONTRACTOR which are directly pertinent to this specific Agreement for purposes including but not limited to audit, examination, excerpts, and transcriptions. This provision shall not be applicable to confidential information regarding the juveniles served.

V. GENERAL PROVISIONS

A. Amendments. Any party to this Agreement may request changes to this Agreement. Any changes, modifications, revisions, or amendments which are mutually agreed upon by all parties shall be incorporated by written instrument, executed and signed by both parties to this Agreement.

B. Americans with Disabilities Act. All parties agree they will not discriminate against a qualified individual with disability, pursuant to a law as set forth in the Americans With Disabilities Act, P.L. 101-336, 42 U.S.C. § 12101, *et seq.*, and/or any properly promulgated rules and regulations relating thereto.

C. Applicable Law and Venue: The parties mutually understand and agree this Agreement shall be governed by and interpreted pursuant to the laws of the State of Wyoming. If any dispute arises between the parties from or concerning this Agreement or the subject matter hereof, any suit or proceeding at law or in equity shall be brought in the District Court of the State of Wyoming, First Judicial District, sitting at Cheyenne, Wyoming. The foregoing provisions of this paragraph are agreed by the parties to be a material inducement to CONTRACTOR and BOARD in executing this Agreement. This provision is not intended, nor shall it be construed, to waive the CONTRACTOR's or the BOARD's governmental immunity as provided in this Agreement.

D. Availability of Funds. BOARD's payment obligation is conditioned upon the availability of funds which are appropriated or allocated for the payment of this obligation. If funds are not allocated and available for the continuance of the services and equipment provided by CONTRACTOR, the Agreement may be terminated by BOARD at the end of the period for which funds are available. BOARD shall notify CONTRACTOR at the earliest possible time of

the services which will or may be affected by a shortage of funds. At the earliest possible time means at least thirty (30) days before the shortage will affect payment of claims if BOARD knows of the shortage at least thirty (30) days in advance. No penalty shall accrue to BOARD in the event this provision is exercised, and BOARD shall not be obligated or liable for any future payments due or for any damages or costs as a result of termination under this provision.

E. Conflict of Interest: BOARD and CONTRACTOR affirm, to their knowledge, no CONTRACTOR employee has any personal beneficial interest whatsoever in the agreement described herein. No staff member of CONTRACTOR, compensated either partially or wholly with funds from this Agreement, shall engage in any conduct or activity which would constitute a conflict of interest relative to this Agreement.

F. Contingencies: CONTRACTOR certifies and warrants no gratuities, kickbacks or contingency fees were paid in connection with this Agreement, nor were any fees, commissions, gifts or other considerations made contingent upon the award of this Agreement.

G. Discrimination: All parties agree they will not discriminate against any person who performs work under the terms and conditions of this Agreement because of race, color, gender, creed, handicapping condition, or national origin.

H. Entire Agreement: This Agreement and Attachment A represent the entire and integrated agreement and understanding between the parties and supersede all prior negotiations, statements, representations, and agreements, whether written or oral.

I. Force Majeure: Neither party shall be liable to perform under this Agreement if such failure arises out of causes beyond control, and without the fault or the negligence of said party. Such causes may include, but are not restricted to, Act of God or the public enemy, fires, floods, epidemics, quarantine restrictions, freight embargoes, and unusually severe weather. In every case, however, a failure to perform must be beyond the control and without the fault or the negligence of said party.

J. Governmental/Sovereign Immunity: The BOARD and the CONTRACTOR do not waive their governmental/sovereign immunity by entering into this Agreement and specifically retain immunity and all defenses available to them pursuant to Wyo. Stat. § 1-39-101 *et seq.* and all other state laws. Further the BOARD and the CONTRACTOR retain all immunities and defenses provided by law with regard to any action, whether in tort, contract or any other theory of law, based on this Agreement.

K. Indemnification: Each of the parties to this agreement shall be responsible for any liability arising from its own conduct. None of the parties agrees to insure, defend or indemnify the other.

L. Independent Contractor: The services to be performed by CONTRACTOR and any personnel utilized by CONTRACTOR are those of an independent contractor and not as an

employee of BOARD. CONTRACTOR assumes responsibility for all personnel who provide services pursuant to this contract.

M. Notices: All notices required and permitted under this Agreement shall be deemed to have been given, if and when deposited in the U.S. Mail, properly stamped and addressed to the party for whom intended at such parties' address listed herein, or when personally delivered personally to such party. A party may change its address for notice hereunder by giving written notice to the other party.

N. Severability: If any provision of this Agreement is held invalid or unenforceable by any court of competent jurisdiction, or if the BOARD or CONTRACTOR is advised of any such actual or potential invalidity or unenforceability, such holding or advice shall not invalidate or render unenforceable any other provision hereof. It is the express intent of the parties that the provisions of this Agreement are fully severable.

O. Termination: In addition to termination as permitted under any other terms of this Agreement, this Agreement may also be terminated (a) by any party to this Agreement at any time for failure of any other party to comply with the terms and conditions of this agreement; (b) by any party to this agreement, with thirty (30) days' prior written notice to the other party; or (c) upon mutual written agreement by all parties.

P. Third Parties: The parties do not intend to create in any other individual or entity the status of third-party beneficiary, and this Agreement shall not be construed so as to create such status. The rights, duties and obligations contained in this Agreement shall operate only between the parties to the Agreement and shall inure solely to the benefit of the parties to this Agreement.

Q. Titles Not Controlling: Titles of paragraphs are for reference only and shall not be used to construe the language in this Agreement.

R. Waiver: The waiver of any breach of any term or condition in this Agreement shall not be deemed a waiver of any prior or subsequent breach.

[The remainder of this page is intentionally left blank.]

CONTRACT FOR SERVICES
between
LARAMIE COUNTY COMMUNITY JUVENILE SERVICES JOINT POWERS BOARD
And
THE CITY OF CHEYENNE, OFFICE OF YOUTH ALTERNATIVES
Signature Page

In witness thereof, the parties to this Agreement, either personally or through their duly authorized representatives, have executed this Agreement on the days and dates set out below, and certify that they have read, understood, and agreed to the terms and conditions herein.

LARAMIE COUNTY COMMUNITY JUVENILE SERVICES JOINT POWERS BOARD

By: _____ Date _____
Kim Skoutary-Johnson, Chair

ATTEST:

By: _____ Date _____

REVIEWED AND APPROVED AS TO FORM ONLY:

By:  Date 7/31/2024
Attorney for Laramie County Community Juvenile Services Joint Powers Board

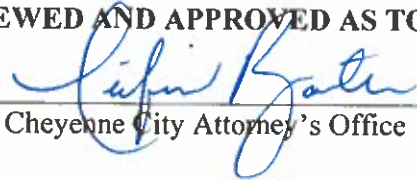
CITY OF CHEYENNE, WYOMING

By: _____ Date _____
Patrick Collins, Mayor

ATTEST:

By: _____ Date _____

REVIEWED AND APPROVED AS TO FORM ONLY:

By:  Date 8/7/2024
Cheyenne City Attorney's Office

ATTACHMENT A

To the Contract for Services between the Laramie County Community Juvenile Services Joint Powers Board and the City of Cheyenne, Office of Youth Alternatives

Request for Funding Fiscal Year 2024

Agency:	City of Cheyenne, Office of Youth Alternatives		
Contact:	Brooks Cotton, Assistant Director		
Mailing Address:	1328 Talbot Court Cheyenne, WY 82001		
Telephone Number:	307-637-6480	Fax Number:	307-637-6487
Email Address:	bcotton@cheyennecity.org		
Funding Request:	Court Services' Community Service Coordinator/ Case Manager This request represents \$76,126 per year for the next two (2) years which totals \$152,252.00.		

Mission Statement:

The mission of Youth Alternatives is to intervene in the lives of young people at an impressionable stage in their emotional growth and development when positive behaviors are more easily formed. As a result, young people are better able to explore new, more appropriate behaviors that help them see their strengths and the world as more positive.

Youth Alternatives Community Service Coordinator/Case Manager Origin:

Many juvenile offenders will have their first encounter with the juvenile justice system due to a misdemeanor violation. In Laramie County, Youth Alternatives has worked in partnership with the Courts for over 50 years to develop and implement programs to protect the community and provide preventive and corrective services to juvenile offenders and their families. It is understood that appropriate early intervention at the misdemeanor level is the best deterrent to future criminal involvement. The tragic problems our young people are facing, i.e., drug and alcohol abuse, gangs, suicide, child abuse, etc. can only be resolved by starting early. Early interventions address delinquent attitudes and behaviors before juveniles are resistant to change. Comprehensive interventions impact the individual's environment in multiple directions.

Funding History:

The Joint Powers Board has been an integral part of Youth Alternatives success through its continued support and funding opportunities. The Joint Powers Board funded Youth Alternatives' Weekenders program for a significant period. Unfortunately, funding ceased in June 2021 due to the State's decision

to no longer fund joint boards throughout the state. However, funding was reimplemented in July 2022 which has allowed Youth Alternatives to provide the Courts with alternative sentencing opportunities related to Laramie County's juvenile population.

Statement of Need:

The funding of this service would allow for the sustainability of services directed towards Laramie County's juveniles, 12 to 18 years of age, who have been involved in high-risk behaviors that have brought them to the attention of law enforcement, school and agency personnel, parents, etc. This includes juveniles who have had their first contact with law enforcement and have been adjudicated by the Court(s). Specifically, funding for this position will allow Youth Alternatives the ability to staff the program at a level that will ensure quality services are provided to the youth and families in the community. If this position is not funded, services to our community's youth and families would be greatly limited. Without the ability to provide intervention services, juveniles would ultimately be at a higher risk of being placed in detention.

Objectives:

Every evaluation that has been completed in the last several years consistently identified the need for services at the front end of the system which include community service and diversion case management. Varied studies, including the LCCJSJPB Strategic Plan, have concurred with the Juvenile Justice Solutions Group findings in their 2008 study which indicated a definite resource need for early intervention. This position would allow Youth Alternates the ability to directly address this need for early intervention services.

Budget:

The table below represents the proposed budget for the next two (2) fiscal year.

Proposed Budget	
Community Service Coordinator	\$44, 435
Health Insurance	\$9, 952
Social Security	\$3,785
State Pension	\$6, 497
Workers Compensation	\$1,326
Life Insurance	\$ 42

Other Expensed (office supplies, telephones, professional development, etc.)	\$5,089
Total Cost	\$76, 126 x 2 years= \$152, 252.00

ATTACHMENT B

To the Contract for Services between the Laramie County Community Juvenile Services Joint Powers Board and the City of Cheyenne, Office of Youth Alternatives

SUBSTANCE ABUSE INTERVENTION Youth Alternatives Request for Funding

Agency:	City of Cheyenne, Office of Youth Alternatives		
Contact:	Brooks Cotton, Assistant Director		
Mailing Address:	1328 Talbot Court Cheyenne, WY 82001		
Telephone Number:	307-637-6480	Fax Number:	307-637-6487
Email Address:	bcotton@cheyennecity.org		
Funding Request:	Substance Abuse Intervention Services \$24,000 This request represents a request to provide substance abuse evaluations as well as chemical testing to youth in diversion or probation through Youth Alternatives at no charge.		

Mission Statement:

The mission of Youth Alternatives is to intervene in the lives of young people at an impressionable stage in their emotional growth and development when positive behaviors are more easily formed. As a result, young people are better able to explore new, more appropriate behaviors that help them see their strengths and the world as more positive.

Funding History:

Currently Unfunded: Given the fact Youth Alternatives is a Criminal Justice Agency, chemical testing costs were previously covered by the State. Due to budgetary restraints, the State is no longer able to cover the costs associated with the testing of juveniles cited in court for substance abuse related issues. Alternative testing sites were explored but were found to be cost prohibitive for many families. With this in mind, Youth Alternatives has been able to keep the costs of testing to a minimum, however, the youth and their families are having to absorb the associated costs. Juveniles required to submit to testing are only required to pay for testing when a test is taken unlike testing sites in the private sector that charge a weekly fee whether a test is performed.

Currently Unfunded: Substance abuse evaluations are included in this request and are currently being paid for by the parents of youth who have been cited for substance abuse related violations. The ability to obtain substance abuse evaluations are considered a best practice approach when dealing with substance abuse related cases to ensure appropriate services are being provided. Often, families are reluctant to obtain an evaluation due to the related costs. The Court is cognizant of this issue and is often conflicted in terms of forcing families to assume a financial burden related to the costs associated

with an assessment.

Statement of Need:

The funding of this project would allow Youth Alternatives to strengthen its diversion services that are currently in place through the Court Services Department and address substance use in youth. Many of the youth and families that Youth Alternatives work with come from situations that make it difficult to pay for necessities in diversion or probation programming such as chemical testing and assessments. Assessments and chemical testing are necessities to determine the proper course for case management.

With the funding of this project, Youth Alternatives would offset the cost of resources such as assessments and chemical testing to the families that Youth Alternatives works with in the Municipal and Circuit Court. Currently, Youth Alternatives charges six (\$6) dollars for chemical testing and if the test must be sent to the lab it is an additional \$12 dollars. This creates a burden for many of the youth and families that we work with. However, Youth Alternatives works with the families to make it manageable.

Youth Alternatives currently uses the Substance Use Survey-Revised (SUS-R), which is a self-report instrument that provides measures of mental health concerns, involvement in deviancy and legal non-conforming conduct, level of defensiveness and readiness and motivation for change and treatment involvement. The SUS-R is a needs assessment instrument that provides guidelines whether an in-depth assessment should be conducted. Unfortunately, this is only a risk and needs assessment and is not recognized as a substance abuse evaluation. To gain further insight into a youths' substance use, families are referred to providers such as Volunteers of America, Specialty Counseling, and Health Works to complete a validated substance abuse assessment. Many insurance providers refuse to pay for substance abuse assessments, so the fee is placed on the youth and family. This causes a financial strain on many of the youth and families that are asked to complete the evaluation.

It is understood that appropriate early intervention regarding problematic behaviors is the best deterrent to future criminal involvement. Early intervention addresses delinquent attitudes and behaviors before juveniles are resistant to change. Many of the youth served have been involved in these high-risk behaviors which have brought them to the attention of law enforcement, school and agency personnel, parents, etc.

Specifically, the funding for this service will allow Youth Alternatives the ability to continue to intervene at the earliest point possible with recognized best practice approaches.

Funding this service provided by Youth Alternatives will continue to allow for the "building of a stronger healthier community."

Objectives:

To strengthen the services provided to those youth that find themselves in the juvenile system at the earliest possible point in their life by removing financial barriers. The ability to have the outcomes of these assessments will ensure that appropriate services are rendered.

Budget:

The table below represents the proposed budget for the requested services that Youth Alternatives would be able to provide youth free of charge.

Proposed Budget Over 2 Years

Substance Abuse Evaluations (100 x \$150)	\$15,000
Drug Kits/Lab Testing Essentials/Supplies	\$ 9,000
Total for a 2-year period	\$24,000